

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201010979	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/09/2010 7:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/9/2012	Precinct: 105		
Date/Time CV Reported Tue, 08/10/2010 3:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/09/2010 3:47 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Tarver	23842	943860	105 PCT
2. POM Anil Jacob	22372	936801	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anil Jacob	Abuse: PO Anil Jacob did not obtain medical treatment for § 87(2)(b)	A . Complainant Uncooperative
B . POM Richard Tarver	Abuse: PO Richard Tarver did not obtain medical treatment for § 87(2)(b)	B . Complainant Uncooperative
C . POM Anil Jacob	Discourtesy: PO Anil Jacob spoke obscenely and/or rudely to § 87(2)(b)	C . Complainant Uncooperative

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the telephone on August 9, 2010, and provided a phone statement on August 19, 2010.

On August 10, 2010, at approximately 7pm, § 87(2)(b) got into a dispute with two of his female neighbors from § 87(2)(b), who were leaving garbage in front of his building, 1 § 87(2)(b) in Queens. As a result of an altercation, § 87(2)(b) hand became bloody.

§ 87(2)(b) called 911, and a marked patrol car with two uniformed officers arrived shortly thereafter. PO1 was described as a white male, 6'2", skinny, 35-40 years old. PO2 was described as an Asian male, 5'5"-5'7", medium build. § 87(2)(b) began to explain the situation and a second marked patrol car arrived two minutes later. An officer from the second patrol car said to PO1 and PO2 that they would take the call, and PO1 and PO2 subsequently left.

PO Richard Tarver and PO Anil Jacob, both assigned to the 105th Precinct, identified by name and shield, asked § 87(2)(b) what happened. PO Tarver was described as a black male, 5'10", 200 pounds, and 35-40 years old. PO Jacob was described as a dark-skinned Indian male, 6', 200 pounds, and 35-40 years old. § 87(2)(b) explained the situation and stated that he needed to be treated for his injuries. Both officers said his injury wasn't serious. PO Jacob said, "Just go home and put some alcohol on it." § 87(2)(b) asked the officers, "Will you take responsibility if something happens to me?" PO Jacob replied, "Are you fucking kidding me?" § 87(2)(b) did not receive medical treatment during or after this incident.

Inv. Lai spoke with § 87(2)(b) over the telephone on August 19, 2010. § 87(2)(b) stated that his earliest availability to make an appointment for a statement at the CCRB would be September 21, 2010. As per Team 1 Manager Cecelia Holloway, an appointment was scheduled for § 87(2)(b) for September 21, and he was informed that if he did not appear, his complaint would be closed. On September 21, § 87(2)(b) sent an associate to the CCRB with a letter, which stated that § 87(2)(b) was unable to come to the scheduled appointment due to "unforeseen circumstances," and asked to be contacted in writing for the investigator's available dates to reschedule. On September 22, the investigator called § 87(2)(b) who stated that he would be unable to make an appointment within the week because he would be out of the country on September 25. He was informed that his complaint was going to be closed, and he should send a letter to the CCRB if he wished to reopen his complaint at a later date. It is thus recommended that his complaint be closed as **Complainant Uncooperative**.

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date